Subject: The torture and other cruel, inhuman or degrading treatment in prison in China and in the United States of America

INTRODUCTION

Despite the importance of the Human Dignity, breaches of this fundamental right might happen behind the prisons walls, no matter if the state is an authoritarian system or a democraty.

Human dignity might be considered as the basis of human rights. This principle is one of the most important absolute right which could never be limited by a state even for the highest reasons of public interest. It refers to the belief that every person as a human being deserves respect and protection no matter their actions. It directly forbids any act of torture or inhuman and degrading treatment. Article 1 of the Convention Against Torture states that torture is *"any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person […]"*. This definition introduced psychological torture for the first time. Inhuman or degrading treatments must be difference from torture. It refers to acts which cause a mental or physical suffering but without desire to cause sever pain or suffering. For example, the conditions of detention in the French prisons have already been considered as inhuman or degrading treatments mostly because of the overpopulation which interferes with the life quality of detainees (ECtHR, *Frerot v. France*, 12/06/2007, *no 70204/01* or more recently ECtHR, *Leroy and others v. France*, 18/04/2024, *no 32439/19*). In most of the case, torture and inhuman or degrading treatments are used as a punishment, to obtain a confession for a crime or to obtain some information. It might be used by states, criminals or criminal organizations. For this thesis, I will focus on the states' actions mainly because it is their positive obligation to protect every human being from torture and inhuman or degrading treatments. Detainees are particularly overexposed to breach of human dignity by states due to the privation of liberty and sometimes because of the nature of their crime.

After the Second World War and the atrocities committed during this period, protected human rights including human dignity became an emergency. Lots of treaties were wrote in the middle of the 20th century in reaction to those things. To illustrate, the United Nations Charter was signed in 1945, the Universal Declaration of Human Rights in 1948, the Geneva Conventions in 1949, the famous European Convention on Human Rights in 1950, the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment in 1984 and some others. Despite all these treaties, violation of dignity can be related in the whole world nowadays due to acts of torture and inhuman or degrading treatments. To give an idea, Amnesty International related cases of torture in 141 countries across the world between January 2009 and May 2013. To illustrate this, few examples may be mentioned like the case *Jalloh v. Germany* judged by the European Court of Human Rights (*no*

54810/00). The Court prononced a violation of Article 3 of the Convention because of inhuman or degrading treatments inflicted to a suspect due to the forced administration of a substance while four police officers holding him to make him throw up a few paquet in his stomach. In Mexico, the authorities have recourse to torture and inhuman or degrading treatments against suspects or detainees mainly in the context of combating drug trafficking and cartels. A famous example is the Adrián Vázquez Lagunes case who was accused in 2012 to be the head of a cartel and sent to jail by Mexican authorities. They tortured him by asphixy, electrocution and other things to force him to confess crimes he didn't commit. He was released after three years due to lack of proof. Another more recent example is the treatment of the suspects of the terrorist attack on March 22th, 2024 on the Crocus City Hall concert in Moscow which killed 137 persons and injuried 180 others. Some pictures[1] prooved that those suspects were been tortured during their interrogations ("*cut his ear off while interrogating him*"; "*use of a suffocation technique*"; "*black eyes and other signs of injuries*"; "*electrocution*"[2]). The publication of videos of those scenes of torture posted online shows the desire of the Russian government to demonstrate its force. All these examples indicate two things. The first one is the variety of countries and political system which are involved in case of violation of human dignity. The second one is the difference about how states end up involved in cases of violation of this right and more exactly of torture.

This study will focus on the connection between the United States of America, as a democracy, and China, as an authoritarian system, to human dignity in their prisons.

How can a democratic regime like the United States be compared to an authoritarian regime like China when it comes to human dignity violation in prison despite all the treaties and conventions they adhered and their own national laws?

First of all, it is primordial to know what these states have in common regarding the laws protecting human dignity either they are international or national (I.A) but also in which context both of them have breached this right (I.B). Second of all, to anwser the question, it is important to understand how the society and the cultural differencies influence the states' actions (II.A) but also the particularity of each political system and its relation with both Judicial and Legislative branches which impacts their possible actions (II.B).

[1] Pictures of the suspect after their interrogatories: https://www.marianne.net/societe/terrorisme/attentat-a-moscou-pourquoi-la-russie-affiche-t-elle-la-torture-subie-par-les-terroristes-presumes
https://www.20minutes.fr/monde/russie/4083181-20240325-attaque-moscou-suspects-tortures-peu-place-doute-selon-observateurs

[2]https://www.amnesty.org/en/latest/news/2024/03/russia-truth-and-justice-for-victims-of-crocus-city-hall-attack-incompatible-with-torture-of-suspects/

I. LEGAL FRAMEWORK AND VIOLATION OF HUMAN DIGNITY IN THE UNITED STATES AND CHINA

The United States of America and China have been signed and ratified treaties and convention which protect the principle of human dignity. In addition, both of them have their own national law about this. Despite all of this, breach of this fundamental right had already happened or are still hapening nowadays in both of those states.

A. INTERNATIONAL AND NATIONAL LAWS PROTECTING THE HUMAN DIGNITY

The most relevant convention to mention here is the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment which has been signed by both the United States and China. This Convention was ratified by 156 states and signed by few others more. The United States of America signed it on the April 18, 1988 and ratificated it on the October 21, 1994. China signed it on the December 12, 1986 and ratificated it on the October 4, 1988. Article 2 of this Convention states that : "*1. Each State Party shall take effective legislative, administrative, judicial or other measures to prevent acts of torture in any territory under its jurisdiction. 2. No exceptional circumstances whatsoever, whether a state of war or a threat of war, internal political instability or any other public emergency, may be invoked as a justification of torture […]*". This article forces states to take national law to prevent any breach of human dignity and reminds the absolute aspect of this fundamental right. In addition, Article 17 of the Convention creates the Committee Against Torture. Its powers are delimitated by Article 20. To summarise, it states that the states must be transparent about their actions and creates an examination procedure in case of suscpicion of torture and inhuman or degrading treatments initiatied by the Committee which has the power to investigate. China has made reservations about the Article 20 and 30, §1 of this Convention. In other words, China didn't recognize the competence of the Committee in case of allegation of torture and the competence of the International Court of Justice in case of dispute between two or more states.

Other treaties and conventions could be mentioned like the Geneva Convention which protect human dignity in time of war. Both of those states signed and ratified this one. The Universal Declaration of Human Rights in 1948 is more symbolic than effective due to the absence of sentence in violation case but the United States and China signed it. Finally, both of them signed the International Covenant on Civil and Political Rights which prohibits torture in its Article 7. However, China has not ratified it so this Convention is not legally binding to this state.

Despite the signature of common treaties and conventions, the United States of America and China had to ratified them and adopted national laws prohibiting torture and inhuman or degrading treatment. A 2021 study in the *American Journal of Political Science* found that countries that adopt national laws prohibiting torture and define it according to the UN Convention's words experience reductions in police torture.[3]

In American law, there is a significant legal framework protecting human dignity and especially probihiting torture and inhuman or degrading treatment. The American Constitution, which is the highest legal framework in American law, prohibits "*Excessive Fines, Cruel and Unusual Punishment*" in its 8th Amendment. The United States Code defines torture in its Title 18, §2340 as an act "*[…] intended to inflict severe physical or mental pain or suffering […]*". This section also defines severe mental pain or suffering as the "*prolonged mental harm*" caused by the infliction of those treatments or the threat of infliction, imminent death and threat of infliction of another person. These sections were adopted in 1994 after the ratification of the Convention Against Torture according to the United States' obligations. Section 1003 of the Detainee Treatment Act of 2005 also aims to prohibit the use of cruel, inhuman or degrading treatment "*in the custody or under the physical control of the United States Government*".

In comparison, China has a poor legal framework to protect human dignity and to prohibit torture and inhuman or degrading treatment. Article 247 of the Chinese Criminal Law prohibits the "*extorts by torture [of a] confession*". Article 248 prohibits the use of "*battery or corporal punishment*" by any public officer in places of detention. Despite those two articles, there is no clear definition of torture. It constituts a huge gap in the Chinese Law. In this context, people are overexposed to breach of human dignity since national law does not protect them sufficiently. Normally, in case of conditions of detention which violate human dignity, detainees are supposed to have few mechanisms like the possibily to make formal complaints but those one are often ignored or dismissed. They barely have access to lawyer and it is not permitted to a Chinese detainee to bring a case to an International Court.

Even if both states signed and ratified treaties and passed national laws to prevent any breach of the right of human dignity, some of their actions have violated it over the past 30 years.

B. EXAMPLE OF BREACH OF HUMAN DIGNITY IN BOTH STATES

One of the most relevant example of breach of human dignity by the United States of America is probably the actions of the Central Intelligence Agency (CIA) after the terrorist attack on the September 11, 2001 in the United States of America. This Agency, which is responsible for national security to summarize, developped an Enhance Interrogation Techniques (EIT) program with the help of two psychologists, James Elmer Mitchell and Bruce Jessen, based on the Air Force's Survival

[3] Berlin, Mark S., "Does Criminalizing Torture Deter Police Torture?". *American Journal of Political Science*. 67 (4): 932–947

Evasion Resistance Escape (SERE) program[4]. They applied EIT program in "*black sites*"[5] such as the Abu Ghraib prison to obtain information from suspects who were potentially involved in terrorist organizations. It consists to the systematic use of torture either psychological or physical like sleep deprivation, loud music, stress positions, waterboard, small confinement box, deprivation of food and drink, threats to their family, etc[6]. This program began in 2002 with Abu Zubaydah[7] and ended in 2006. In total, at least 119 detainees went to those *black sites*. Senator Dianne Feinstein, as the Chair of the Senate Intelligence Committee, created a research group led by Daniel Jones to investigate on the CIA actions after the destruction of some videotapes of those acts of torture in 2005. They wrote the Senate Intelligence Committee's report on the CIA's Detention and Interrogation Program, a report of 6.000 pages, and the Senate voted to publish a part of it for transparancy reasons and to give an example of learning from their mistakes in 2014. It almost failed because of CIA's lack of transparency and conceal its actions.

Another symbolic example of violence and torture by the United States is Guantanamo bay[8]. Among the torture used there, lots of them are the same as those used in the EIT program especially waterboard, sleep deprivation and stress position. The context is also pretty identic: imprisonment of hundreds of Muslim men and even boys to interrogate them after the terrorist attack of the September 11, 2001 at the Guantanamo bay detention camp, in Cuba. Currently, 30 detainees are still held there[9].

Those examples show that despite of the American legal framework which seems more protective, the state's actions breach the human dignity in its fight against terrorism.

Lots of organizations such as Amnesty International and Human Rights Watch report systematic breaches of human dignity in China.

To illustrate, the region of Xinjiang is saddly famous for its internment camps. It is one of the biggest region of this country with a population of 25.8 million of inhabitants which is mostly muslim. It includs 11.3 million of Uyghurs and a lot of minorites like Tibetians or Falun Gong. In the rest of China, the major ethnicity is the Han Chinese. Since 2017, the government has been started a

[4] Program created after the Korean War to train soldiers to resist to torture and to survive (Anthony P. Doran, Gary Hoyt, Charles A. Morgan III, *Survival, Evasion, Resistance and Escape (SERE) Training: Preparing Military Members for the Demands of Captivity*, Chapter 11, p.243)

[5] It refers to the secret places of detention where suspects from terrorist organizations were interrogated by the American authorites with the use of torture

[6] Scott Z. Burns, *The report*, 2019

[7] Carol Rosenberg, "What the C.I.A.'s Torture Program Looked Like to the Tortured", *New York Times*, December 4, 2019

[8] Letta Tayler & Elisa Esptein, "The Symbol of US Abuse in the Global War on Terror, Why President Biden should fulfill his pledge to close the prison at Guantánamo Bay", *Human Rights Watch*, January 19, 2022

[9] "The Guantanamo Docket", *New York Times*, August 7, 2024

"vocational training" based on voluntary. According to Amnesty International, it is more a "campaign of mass detention"[10]. At least one million people have been arbitrary detained in those camps since their creation and, most of the time, without any criminal offense (Khaina who were detained for having WhatsApp). The aim of those camps is to replace the thoughts and beliefs of the minorities with the Han culture and language and to create a loyalty to the Chinese Communist Party. In the internment camps, the conditions of detention constitute inhuman and degrading treatments (barely able to take a shower for weeks or months, permission to urinate, barely natural lights in the cells, no access to fresh air, etc.). They are also undernourished. Morever, all detainees are exposed to some psychological abuses mainly because of the constant threats, violence and severe punishments if they don't adopt the "right conduct" like talking another language than Mandarin Chinese. More than that, they are forced to watch gards torturing their cellmates. Before coming to the camps and during their detention, detainees have interrogations to make them confess about crime either they commit it or not. During those interrogations, torture and ill-treatments are common and are also used to punish detainees. This includs tiger chair for hours, beatings, electrocution, exposure to extremely cold temperature, solitary confinement, sleep deprivation, stress positions, etc.

Another major problem which is difficult to related due to the efforts of Chinese government to conceal it is the legitimate suspicion of forced organ harvesting mainly on detainees from minotories like Falun Gong members, Uyghurs, Tibetians or political opponents.[11]

All these examples are totally a breach of human dignity and violate the United Nations Convention's.

In conclusion, despite the signature and the ratification by both of the states of the most important convention which is the United Nations Convention, the difference between their national laws is huge with lots of protection on the American side and few in the Chinese side. In spite of that, both of them have breached several times, nay systematically breach, the right of human dignity. Those divergence and convergence should be regard through the impact of the sociological and political factors on both of these states.

[10] Report, "'LIKE WE WERE ENEMIES IN A WAR' China's Mass Internment, Torture and Persecution of Muslims in Xinjiang", *Amnesty International*, October 2019 - May 2021

[11] Working group, "China: UN human rights experts alarmed by 'organ harvesting' allegations", *United Nations, Human Rights, Office of the High Commissioner*, June 14, 2021

II. SOCIOLOGICAL AND POLITICAL FACTORS AFFECTING THE HUMAN DIGNITY EITHER IN ITS PROTECTION OR ITS VIOLATION

The states' actions have to be understand through the influence of the society and culture of each country. Furthermore, the political system and especially its relation with judicial institutions also need to be analyze.

A. INFLUENCE OF THE SOCIETY AND CULTURE ON STATES' ACTIONS

At the beginning of the century, the United States was one of the two greatest powers in the world, winner of the conflict with the URSS which had been dissoluted almost ten years earlier. Despite their powerful image, one of the largest terrorist attacks ever perpetrated happened on their territory on September 11, 2001. Four planes were destinated to crash into symbolic buildings: the two towers of the World Trade Center, the Pentagon probably to the White House too but a plane missed its target. In more than one hour, 3.000 people were killed[12]. It was an affront to the state. The authorities was ashamed and felt weak. In addition, the American society afraid and felt unsafe. The images of the World Trade Center in fire shocked the entire world. It is in this context, that CIA developped its EIT program based on the use of torture methods because they considered that torture detainees who might be involved in futur terrorist attacks to avoid them worthed it. This question continues to divide American society. According to a survey held in 2016[13], 61% to 79% of Republicans think that the fight against terrorism may justify the use of torture while 63% to 74% of Democrats who think that, even in the fight against terrorism, torture is not justify. This survey also show an influence of the age on the tolerance of torture in certain circumstances. The majority of youger people (ages 30 to 49) is against the use of torture under any circumstances with 58% and the majority of older people (over 65) think certain circumstances may justify torture with 54%.

In this context, there is no doubt that the American society recognizes the methods used by the CIA for example as torture. To illustrate, in 1983, Sheriff James Parker and two of his deputies[14] were charged with waterboarding detainees. At this time, the jury found him guilty of torture and inhuman treatments. Furthermore, the United States had previously charged American soldiers after the World

[12] BU Today Staff, "How 9/11 Changed the World", *Boston* University, September 8, 2021

[13] Alec Tyson, "Americans divided in views of use of torture in U.S. anti-terror efforts", *Pew Research* Center, January 26, 2017

[14] "Ex-sheriff guilty in torture case", *New York Times*, September 15, 1983

War I and Japenese military officials after the World War II for similar reasons. These examples attests for how long the United States recognize cases of torture when there are present.

In China, the situation is different. The use of torture is strongly denied by the authorities. Most of the time, human rights activits like lawyers are sent to jail when they try to expose these practices. Chang Weiping[15] is one of those lawyers. In June 2022, he was sentenced to more than three years of jail for denouncing acts of torture. The official charge is "subversion of state power". In prison, Weiping had already experienced torture and inhuman or degrading treatments such as tiger chair, isolation, threats to his family, etc. Xu Zhiyong is also a human rights activist who founded the New Citizens' Movement in 2012 to demand government transparency. We can also mention Ding Jiaxi or Alkan Akad. All of them were arbitrary detained for "subversion of state power" and experienced torture such as tiger chair for more than 10 hours per day[16].

As I exposed it before the use of torture by the Chinese government is link to its policy of cultural unification and to obtain loyalty to the Chinese Communist Party. In a larger way, there is a famous example of societal protest against the Chinese government which is the Tiananmen Square Massacre[17]. This protest march began in June 1989 with students and workers to denounce corruption and express their discontent with the political system. After negociations failed, the Chinese government sent armed soldiers and tanks. The army opened fire on the crowd. There is no killed people census from this event but it is estimated from 200 to several thousands of deads. Commemoration of this event is forbidden and this protest is highly censured in China.

The public opinion is more able to influence the states' actions in the United States than in China due to the freedom of speech which is more important in the democrats that is the United States. In China, the censure and the repression is so strong that it limits a lot public opinion and discontentment expression. Notheless, the society couldn't be the only way to understand the differences between the United States and China regarding the protection or not of human dignity. The political system has an important role in this protection.

B. The difference in the relation between the Executive branch and both Judicial and Legislative branches in both states

[15] "China: Jail sentence for lawyer who reported being tortured 'an outrage'", *Amnesty International*, June 8, 2023

[16] "China: Heavy prison sentences for human rights activists 'disgraceful'", *Amnesty International*, April 10, 2023

[17] "Tiananmen Square: What happened in the protests of 1989?", *BBC*, December 23, 2021

The main difference in the relation between the Executive Branch and the others in the two states is the level of independence and control.

In the United States, there is what is called “check and balances”. It refers to an equal level of dependence and independence among each branch in the American system which creates an equality in term of power and prevents any branch from controlling the others. This system allows the Judicial Branch to address any breach of human dignity even if tit is perpatrated by the government itself. The James Parker case mentionned earlier illustrates that. The independence of the Legislative Branch permitted to the Senate to investigate the CIA’s actions when it was necessary and to make it public. Despite the American government’s actions, the desire to protect human dignity including prohibition of torture and inhuman or degrading treatment is huge. The EIT program was repudiated by President Obama when the presidency discovered what it consited of. Another issue that might be raised is the absence of prosecution against the CIA agents responsible but also against the Bush’s government members who initially validated the EIT program at first. Furthermore, due to the American system of “check and balances” the Legislative Branch was able to reinforce the detainees right with the Detainee Treatment Act of 2005. It contributes to increase the serious nature of breach of human dignity from the American authorities and its Section 1003 refers to Article 3 of the UN Convention Against Torture which states that “*An order from a superior officer or a public authority may not be invoked as a justification of torture*”. The remedies available to detainees in case of breach of their dignity as a human are also well-developed.

The Chinese system is built on three main branches (Legislative, Executive and Judicial) but also includes the Control Branch and the Examination Branch. Contrary to the American system, the Judicial and Legislative branches are bounded by the Executive Branch in Chinese system. This is due to the fact that Chinese law was built on the concept of “unity of state’s power” from the Marxism-Leninism theory. The Legislative Branch, composed by the National Popular Assembly and the Permanent Committee, only enacts the bills sent by the Executive Branch itself composed by the governement aligned with the Chinese Communist Party. Furthermore, the Judicial Branch is composed by judges dependent on the state’s assemblies also in line with the Chinese Communist Party because these assemblies appoint judges and are also able to revoke them. This lack of independence mainly from the Judicial and Legislative Branch affects directly the detainees and the population in general. The Executive Branch, controlled by the Chinese Communist Party, and embodying the authoritian system, restricts the judicial remedies indirectly because they control the Legislative Branch itself which is supposed to write and vote bills. The Executive Branch is also responsible of unfair trials by controlling the Judicial Branch. The human rights activists mentioned previously illustrate perfectly that. All of them experienced arbitrary detention in Residential Surveillance at a Designated Location before being able to stand a trial - trials which was fake for Xu Zhiyong, Ding Jiaxi and Chang Weiping. Those places allow the government to arbitrarily detain people during up to 6 months without tiral. The

opposants to the system and mostly petitioners could also be arbitrary detained in a form of extrajudical detention system named "*black jails*"[18] due to the mediocre detention conditions and many acts of physical and psychological torture. In China, torture is used as a tool to maintain the political system and suppress the system's opponents. Due to this, the torture has been institutionalized in Chinese law. The remedies are strongly restricted and there is no possibily to bring a case before an International Court as demonstrated previoulsy. Furthermore, sentences are rare like the human rights activits' cases show it.

CONCLUSION

To conclude, both states have shown at one point a desire to emphasize the importance of human dignity and more precisely the prohibition of torture and inhuman or degrading treatment. They have adopted national laws in line with this desire. Nevertheless, history shows that both countries have violated it. On those points, the United States and China are similar.

However, the difference in power structure and political regimes leads on a different result due to how they deal with those violations and the place of torture in the system. This issue seems easier to fight in the United States due to the independence of the Legislative and Judicial branches. Even inside the Executive Branch, political diversity helps to combat cases of human dignity breach. Moreover, the public opinion is highly divided on the use of torture even in the combat against terrorism according to surveys. On the contrary, torture has a specific role in the Chinese system and its authoritarian trait doesn't leave much room to public opinion as illustrated by the Tiananmen Square Massacre.

Facing this problem, the International organizations like the United Nations and especially the Committee Against Torture are not able to condemn any states for their action due to its absence of effective power. This is the largest gap of the international law. The international organizations whether they are governmental or not only have the possibility to denounce publicly what states do and put pressure on them. These reports of violations may influence the policizs of the states concerned, mobilize public opinion and affects states' relations especially for democratic states[19].

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